

The issue for consideration is trespass to land. There are two instances that may constitute trespass: the first occurrence is Jasmine's tent looming several feet into Connor's backyard, and the second occurrence is Connor stepping into Jasmine's yard to argue.

Trespass to land

Trespass to land at common law is a civil intentional tort defined as a defendant directly and intentionally interfering with land in exclusive possession of the plaintiff without their consent or legal justification.¹

The elements are thus

- (1) an act of interference to the land by the defendant,
- (2) that was a sufficient act,
- (3) the act was direct interference to the plaintiff and not consequential,
- (4) the plaintiff has exclusive possession over the land (i.e. title to sue), and
- (5) the defendant had requisite state of mind (i.e. intention).²

In its name, trespass to land, is about land. Both Jasmine and Connor backyards constitute as such. But to bring about action, they must have exclusive possession of their respective land which goes by way of ownership (e.g. title) or as a lessee³, or in more unusual cases where possession of land by neither title or lessee but via act of maintenance.⁴ The scope of land can go beyond surface area, and can include, within limitation, airspace⁵ and subsurface⁶.

Torts are civil action and thus proof is evaluated on the balance of probabilities. For Trespass to land to succeed the onus of proof is on the plaintiff to show fault of defendant by way of elements (1)–(4). Element (5) is unsettled at common law: it is

¹ *Plenty v Dillon* (1991) 171 CLR 635, 639 (Mason CJ, Brennan and Toohey JJ); *TCN Channel Nine Pty Ltd v Anning* (2002) 54 NSWLR 333, 339 [23]–[26] (Spigelman CJ); Sarah Withnall Howe and Greg Walsh, *LexisNexis Study Guide: Torts* (LexisNexis Butterworths, 4th ed, 2021) 117 [7.2].

² Sarah Withnall Howe and Greg Walsh, *LexisNexis Study Guide: Torts* (LexisNexis Butterworths, 4th ed, 2021) 117 [7.2].

³ *Moore v Devanjul Pty Ltd (No 5)* [2013] QSC 323, [20] (McMeekin J).

⁴ *Newington v Windeyer* (1985) 3 NSWLR 555.

⁵ *Bernstein of Leigh v Skyviews & General Ltd* [1978] QB 479, 488 ('Skyviews').

⁶ *Bocardo SA v Star Energy UK Onshore Ltd* [2011] 1 AC 380, [27].

debated whether the plaintiff must prove intention or whether intention is presumed from the voluntary act, leaving the defendant to rebut it.⁷

Since trespass to land is actionable per se it is not necessary to prove damage to the plaintiff.⁸

Defences to trespass to land is consent to entry aka licence,⁹ legal justification whether by statute or other means such as warrant,¹⁰ involuntary conduct (e.g. accident),¹¹ and necessity.¹² Mistake does not constitute a defence.¹³ The onus is on the defendant to prove the defence thereby negating the fault.

Per *Limitation Act 1969* (NSW) s 14(1)(b) an action founded on tort can be brought against the defendant up to six years from when the act first accrues.¹⁴

With trespass to land explicated we now analyse the two cases.

Jasmine's tent

In this case we analyse whether Jasmine's tent looming over Connor's flower bed constitutes trespass. In understanding the analysis keep in mind that Connor would be the plaintiff and Jasmine the defendant.

First the question is whether there is trespass if Jasmine did not physically enter Connor's land. It was determined in *Watson v Cowen* that pushing earth onto plaintiff's land with a bulldozer constitutes trespass even though the defendant did not physically enter the land,¹⁵ and in a case of livestock roaming on plaintiff's land the defendant was found liable even though they did not set foot on said land,¹⁶ and in a case of defendant piling bricks on the plaintiff's land again without setting foot on the land.¹⁷

⁷ *McHale v Watson* (1964) 111 CLR 384, 389 (Windeyer J); *Hackshaw v Shaw* (1984) 155 CLR 614, 618-619 (Gibbs CJ).

⁸ *Plenty v Dillon* (1991) 171 CLR 635, 639 (Mason CJ, Brennan and Toohey JJ), quoting *Entick v Carrington* (1765) 19 St Tr 1029, 1066.

⁹ Ibid 639.

¹⁰ Ibid.

¹¹ *Public Transport Commission of NSW v Perry* (1977) 137 CLR 107.

¹² *Cope v Sharpe (No 2)* [1912] 1 KB 496.

¹³ *Wilson v McDonald* (2009) 193 A Crim R 63, [24]; *James v North Star Pastoral Pty Ltd* [2019] NTSC 72; *Warren v Lawton (No 3)* [2016] WASC 285, [210].

¹⁴ *Limitation Act 1969* (NSW) s 14(1)(b).

¹⁵ *Watson v Cowen* [1959] Tas SR 194.

¹⁶ *Lade & Co Pty Ltd v Black* [2005] QSC 325.

¹⁷ *Hill v Higgins* [2012] NSWSC 270.

Therefore not physically entering the land in person does not vitiate trespass to land if interference emanates by other means.

Both the tort of nuisance and trespass are concerned with the plaintiff use and enjoyment of land; for which one applies it can be difficult to ascertain. For interference to be trespass it must be, as aforementioned, direct interference, but must also occur on the plaintiff's land. This is distinct from nuisance which is concerned with emanations e.g. 'noise, dirt, fumes, a noxious smell, vibrations, and suchlike' from a neighbouring defendant's land.¹⁸ Thus this instance of the tent would fall under trespass as it is interference on the inside perimeter of the plaintiff's land.

It is unclear whether Jasmine's tent physically encroaches on Connor's backyard or is a tent like an umbrella that juts out looming over Connor's flower beds. If physically on Connor's land then it satisfies the first element that it is an act of interference on the land, but in the latter case the argument is whether there is interference by way of airspace. In *LJP Investments Pty Ltd v Howard Chia Investments Pty Ltd* it was held scaffolding encroaching on adjacent property airspace constitutes trespass and also explicates the test per Hodgson J: '[T]he relevant test is not whether the incursion actually interferes with the occupier's actual use of land at the time, but rather whether it is of a nature and at a height which *may* interfere with any ordinary uses of the land which the occupier *may* see fit to undertake.'¹⁹ The test would be satisfied as Connor ordinarily enjoys his backyard and flower beds and the tent interferes with that and obstructs his view.

It is now established there was interference on Connor's land but we need to consider if said interference is sufficient. In *Westripp v Baldock* the defendant had materials made contact with the plaintiff's land, while technical, was considered sufficient for trespass.²⁰ Juxtaposed with Jasmine's situation should the tent make contact inside the perimeter of Connor's land then the aforementioned case supports this as sufficient for trespass. If however the tent interferes in airspace then the test in *LJP Investments Pty Ltd v Howard Chia Investments Pty Ltd* supports this instance as sufficient interference, and

¹⁸ *Hunter v Canary Wharf Ltd* [1997] AC 655, 685.

¹⁹ *LJP Investments Pty Ltd v Howard Chia Investments Pty Ltd* (1989) 24 NSWLR 490.

²⁰ *Westripp v Baldock* [1938] 2 All ER 779, 782.

further support is provided by a case where the jib of a crane over airspace constitutes trespass²¹ which further supported a similar case but with the boom of a crane,²² and a case where the defendant's advertisement sign protruded into the plaintiff's airspace by a few mere inches.²³ One factor that lessens the extent of the sufficiency is that the tent was a transient interference as opposed to a permanent fixture.²⁴ The height of the intrusion in airspace however plays in Connor's favour as it is well within the proximity to interfere with his enjoyment and use of land.²⁵ Another factor playing into sufficiency is the effect of the interference and its impact it had on Connor, which he tells Jasmine obstructs his view of his garden, and frustrating his enjoyment of the backyard which he considers a tranquil place. Combining these factors sufficiency is made out.

Applying the analogy of *Reynolds v Clarke*, Jasmine erected a tent that caused immediate harm to Connor's enjoyment of the land and is therefore a direct interference.²⁶

In order for Connor to sue Jasmine over trespass he must have title to sue or possession. As the facts state it is Connor's backyard, and thus presumed he is owner or a lessee.

It must be shown or not negated that Jasmine has requisite intention. Jasmine knowingly extended the tent past Connor's yard indicated by her thinking he wouldn't mind, and is evidenced in Connor's interaction when Jasmine gets defensive and says '[i]t's just a tent for a few hours. What's the big deal?' Though it could be said that Jasmine was merely negligent because she set up the tent in haste without paying attention to boundary lines, but in *Johnson v Buchanan* it was held that negligence still constitutes trespass as the core issue is conscious and voluntary action,²⁷ in which case Jasmine act was both conscious as she knew the tent protrudes on Connor's land, and voluntary as she did so for the enjoyment of her guests.

²¹ *Graham v KD Morris & Sons Pty Ltd* [1974] Qd R 1 ('Graham').

²² *Janney v Steller Works Pty Ltd* (2017) 53 VR 677, [30]–[40] ('Janney').

²³ *Kelsen v Imperial Tobacco* [1957] 2 QB 334

²⁴ *Ibid.*

²⁵ *Skyviews* (n 5) 486; *Graham* (n 21).

²⁶ *Reynolds v Clarke* (1725) 1 Str 634, 636. In the judgement Fortescue J provides way of analogy: 'if a man throws a log into the highway, and in that act it hits me; I may maintain trespass, because it is an immediate wrong; but if as it lies there I tumble over it, and receive an injury, I must bring an action on the case [claim of negligence]; because it is only prejudicial in consequence, for which originally I could have no action at all.'

²⁷ *Johnson v Buchanan* [2012] VSC 195, [67].

Referring to defences to trespass to land, Jasmine did not have consent as demonstrated by Connor's frustration and response, nor lawful authority for if she had it would've been presented at the time, and was not involuntary conduct or done out of necessity as the tent was erected for the enjoyment of her guests. Jasmine did make the mistake of erecting the tent on his property thinking he would pay no mind, but as stated earlier mistake is no defence to trespass.

Therefore Jasmine is liable to the action of trespass to land.

Connor enters Jasmine's backyard

In this case Connor infuriated by Jasmine nonchalant response when asked to take down the tent steps into Jasmine's yard escalating the situation. In this situation Jasmine would be the plaintiff and Connor the defendant.

Per *Plenty v Dillon*, setting foot on another's land without licence is subject to trespass regardless of whether there is damage.²⁸ Connor's entry into Jasmine's backyard is itself is trespass (bar any vitiating factors) and thus interference albeit no damage to the land is made out.

The interference is not an emanation but the manifestation of the person on Jasmine's land which may be cause of damage or harm to Jasmine's enjoyment of the land including the event she was hosting and enjoyment of her visitors. Therefore qualifying as direct interference.

Whether the interference was of trifling nature or substantial is moot since even trespass that is trifling does not provide a defence, and a plaintiff is still entitled to damages.²⁹ Therefore mere entry qualifies as sufficient interference.

It is presumed that Jasmine has possession over her land as an owner or lessee, and thus has title to sue.

Connor appears to have the requisite intention of entering Jasmine's land, as his

²⁸ *Plenty v Dillon* (1991) 171 CLR 635, 639 (Mason CJ, Brennan and Toohey JJ), quoting *Entick v Carrington* (1765) 19 St Tr 1029, 1066.

²⁹ *James v North Star* [2019] NTSC 72, [2].

conduct was volitional as opposed to involuntary and/or accidental,³⁰ as he escalated the situation in hopes for Jasmine to bring the tent down or he would bring it down himself.

Connor would not be able to make out a defence of consent as Jasmine did not explicitly consent to him entering her yard, nor was there implied consent as her yard is not open and accessible by the public such would be the case of a driveway.³¹ Connor also does not have legal justification, as responding to trespass does not vitiate trespass at law. It was also not involuntary conduct or mistake as there was volition.

Connor may justify the conduct out of necessity as he says he will 'rip [the tent] down', but that would be necessity for his enjoyment, and not actual necessity which would need to be made out by way of imminent peril, in which this case doesn't apply as Connor is not protecting his property or land from danger but instead trying to remedy a wrong.³²

Therefore Connor is liable to the action of trespass to land.

Remedies

Both Connor and Jasmine are able to sue each other for distinct cases of trespass to land.

Courts would award both nominal damages as each had their rights infringed by virtue of trespass. There would not be an award for compensatory damages as neither had material damage made out to their property or land.

For Connor's case against Jasmine there could be consideration of exemplary (punitive) damages due to what could be considered aggravation as Jasmine repeatedly refused to bring down the tent which escalated Connor's frustration. However such conduct would need to show Jasmine was guilty of 'conscious' and 'contumelious disregard' which is arguable but not probable.³³

³⁰ *Public Transport Commission of New South Wales v Perry* (1977) 137 CLR 107. The findings were that the plaintiff falling onto the tracks which was claimed trespass was negated by the fact that the act was involuntary due to an epileptic fit and thus amounted to an accident.

³¹ *Halliday v Nevill* (1984) 155 CLR 1.

³² *Cope v Sharpe (No 2)* [1912] 1 KB 496.

³³ *Uren v John Fairfax & Sons Pty Ltd* (1966) 117 CLR 118, 154 (Windeyer J).

For Jasmine's case exemplary damages require something more than mere trespass and therefore would not be awarded.

For Connor, in principle he could request an injunction for Jasmine's trespass, but it would only make sense if the trespass was ongoing or repetitious, but since this happened once and unlikely to happen again, it would make little sense.

Conclusion

Both Connor and Jasmine are entitled to sue each other for trespass to land, but due to the trivial nature of the acts in the grand scheme of things, they may be served by other means of seeking relief.

In such cases, a pre-trial negotiation and agreement to ensure each do not infringe on the rights of each other in the future and to respect boundaries could get the desired relief while reducing time and money spent in courts.

Having a third party mediator via Alternate Dispute Resolution (ADR) is another way to address the issue.

In both ways above, not only would the trespass of land disputes be addressed, but the other concomitant problems such as nuisance and other trespass would be discussed in aggregate as to flesh out in whole what each party would need to enjoy their use and comfort of land and person.

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